

Azad Singh vs Devi Singh Ors on 7 March, 2024

In the Court of Shri Ajay Kumar Malik : Additional Senior Civil Judge
of South West District at Dwarka Courts, New Delhi

CS SCJ. 426032/16

CNR No. DLSW03-000236-2014

AMENDED MEMO OF PARTIES

In the matter of :-

1. Sh Kuldeep Singh Phalswal
s/o Late Azad Singh
r/o RZ-82, R Block,
New Roshanpura, Najafgarh,
Holi Chowk, Najafgarh,
Delhi-110043.
2. Smt. Suman w/o Sh Baljit Singh
Mattan (20), Mattan
Jhajjar,
Haryana-124501
3. Smt. Geeta Devi w/o Sh Satyawan
H.no. 779, BichliGali Near Talab,
Daultabad(53), Daultabad,
Gurgaon,
Haryana-122006.

.....Plaintiff

VERSUS

1. Sh Devi Singh,
son of Smt. Dhankaur,
r/o Village & P.O Ghuman Hera,
New Delhi-73.
2. Sh Dharampal, son of Smt. Dhankaur,
Since dead, through Legal Representatives
2(a) Sumitra, w/o Sh Dharampal
2(b) Hoshiyar Singh s/o Sh Dharampal
2(c) Deepak s/o Sh Dharampal

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- 2(d) Late Smt. Sushila alias Gyano w/o Late Sh Parvesh
(Predeceased daughter of Late Sh Dharampal)
2(d) 1 Master Himanshu
2(d) 2 Miss Himanshi
2(d) 3 Master Harsh

All r/o Village & P.O. Guman Hera

New Delhi-73.

3. Smt. Omwati w/o Sh Mahender Singh
r/o Village Tikri Khurd
New Delhi.
4. Smt. Roop Kaur
w/o Late Sh Jor Singh
5. Smt Ishwanti
w/o Sh Jai Singh
6. Smt Bala
w/o Sh Ishawar Singh
SL3-6, d/o Smt. Dhankaur
r/o Village Kanunda
PO Bahadurgarh
Haryana.

.....Defendants

Date of institution	:	18.09.2014
Reserved for Judgment	:	29.02.2024
Date of decision	:	07.03.2024

Suit for Declaration and Permanent Injunction

JUDGMENT

1. This is a suit for permanent injunction filed by plaintiff against the defendants for declaring defendants as illegitimate children of deceased Sardar Singh born out of illicit relations with Smt. Dhan Kaur and declare CS No. 426032/16 Page no. 2 of 18 mutation order dated 22.06.2013 passed by Tehsildar, Kapashera, New Delhi in case Misal No. M-71/CO/TKH/2012-13 as null and void, for decree of permanent injunction in favour of plaintiff and against defendants restraining defendants from selling, alienating, transferring, assigning or creating third party interest in the suit property.

Plaintiffs' Case

2. The case of the plaintiff as averred in the plaint is that plaintiff is only son of Late Sh Sardar Singh @ Sardare and Smt. Bhateri Devi. Late Sh Sardar Singh was Bhumidar of agricultural land to the extent of 1/3rd share in total agriculture land of 31 bigha, 6 Biswa in Revenue Esate of Ghuman Hera, Najafgarh in several khasra numbers detailed in the plaint. His father Sh Sardar Singh was bhumidar of the agriculture land and also had residential houses, Gher and Gitwar in village. After death of Late Gyani, in 1935, his sons namely Attar Singh, Sardar Singh and Raghubir Singh succeeded to his estates. Sh Attar Singh was a Sepoy in Army and had expired during his services in 1945. After independence Smt. Dhan Kaur being widow of Late Attar Singh used to get pension from Govt. Smt Dhan Kaur was married to Sh Attar Singh gave birth to a son namely Kartar Singh from that martial tie. After death of Attar Singh, Smt. Dhan Kaur had illicit relations with deceased

Sardar Singh during the life time of his wife Bhateri Devi and his son (the plaintiff). From the said relationship of Smt. Dhankaur and Sh Sardar Singh two sons and four daughters were born. Smt. Bhateri Devi had only one son namely Azad Singh i.e. plaintiff. Smt. Bhateri Devi, legally wedded wife of deceased Sardar Singh and mother of plaintiff strongly objected to the illicit relation between Smt. Dhan Kaur and her husband but she was extended threats to be thrown out of the house by her husband and Smt. Dhan Kaur. It is stated children born CS No. 426032/16 Page no. 3 of 18 out of such illicit relation are illegitimate and are not entitled to inherit the estate of Late Sardar Singh. It is further stated that six children born out from the illicit relations of Late Sardar Singh and Smt. Dhan Kaur have no right, title or interest in the ancestral properties acquired by deceased Sardar Singh, however plaintiff agreed to divide 1/3rd undivided share of deceased Sardar Singh into two equal shares i.e. 1/2 share to plaintiff and 1/2 share to Sh Devi Singh and Sh Dharampal illegal brothers. It is stated that alleged brothers and sisters of plaintiff got signed an affidavit and submitted the same with Tehsildar, Kapashera and got mutated their names in the revenue records without any right, title or interest. It is stated that after mutation of their names in the revenue records defendants refused to give 1/2 share to plaintiff and rather told that they will give only mutated 1/7th share to plaintiff. It is stated that the alleged brothers & sisters after getting mutation in their names are trying to sale their alleged shares in agricultural land left behind by deceased Sardar Singh without having any right, title or interest in the suit properties.

Defendants' Case

3. Written statement has been filed on behalf of defendant no. 1 wherein it has been contended that by way of the present suit plaintiff wants to grab the entire property/share of the defendants in the properties left behind by deceased father of the parties. It is stated that prior to filing of the suit and during life time of Late Sh. Sardar Singh plaintiff has never raised any objection regarding the relationship of the parties and now the plaintiff is levelling allegations against the defendants. It is stated that Sh. Sardar Singh alongwith his two wives and all children i.e. parties were residing together in the same house and all were brought up, got educated CS No. 426032/16 Page no. 4 of 18 and settled in their lives by Sh Sardar Singh and both his wives . It is stated that Sh Sardar Singh is the legal, legitimate and natural father of defendants and the name of their father i.e. Sh Sardar Singh is also written and shown in the school records of all defendants. It is stated that the mother of defendants refused to have any share in the said agricultural land and therefore, the entire land so left behind by Sh Sardar Singh was acquired by parties to the suit to the extent of 1/7 share each as per law.

4. Written statement has been filed on behalf of defendant no. 2 to 6 wherein it has been contended that plaintiff has sought the relief of declaration after a long period of 70 years. It is stated that limitation of declaration is 3 years from the cause which occurred between the parties. It is stated that plaintiff had admitted that Smt Dhankaur is the wife of Late Sh Sardare @ Sardar Singh because during the lifetime of Late Sh Sardare, the plaintiff had not challenged the rights of defendants.

5. Replications have been filed by the plaintiff to the written statement of the defendant no. 1 and defendant no. 2 to 6 wherein the contents of the plaint have been reiterated and the contentions of

the defendants in its written statement have been denied except the admissions made.

6. During the course of proceedings defendant no.2 Sh Dharampal expired on 22.12.2016 and thereafter, plaintiff moved an application for impleading LR's of defendant no. 2. Vide order dated 30.01.2018 LR's of defendant no. 2 i.e. wife Sumitra, two sons namely Hoshiyar Singh & Deepak and three children of his deceased daughter Late Smt. Sushila @ Gyano namely Master Himanshu, Ms. Himanshi and Master Harsh were impleaded in the present suit. LR's of defendant no.2 adopted the WS CS No. 426032/16 Page no. 5 of 18 already filed on behalf of defendant no. 2 to 6. Vide order dated 04.06.2019 defendant no. 2c Sh Deepak (one of the LR of defendant no. 2) was appointed as guardian of minor defendant no. 2d(1) to 2d(3) i.e. Master Himanshu, Ms. Himanshi and Master Harsh.

Ld counsel for plaintiff moved an application u/o 22 Rule 4 CPC for impleading LR's of defendant no. 5 on 10.05.2022 and the said application was dismissed by this court vide order 17.02.2023 and LR's of defendant no. 5 were abated in the present matter.

Issues

7. After completion of pleadings, vide order dated 22.12.2017, the following issues were framed by my learned Predecessor for trial :

i Whether the suit of the plaintiff is barred by limitation? (OPD) ii Whether the suit of the plaintiff is bad for non joinder of necessary parties more specifically Smt. Dhan Kaur i.e. mother of the defendants? (OPD) iii Whether a factum of marriage (void/voidable) is essential for the purposes of applicability of Section 16 of Hindu Marriage Act, 1955 (OPP) iv Whether a Karava marriage took place between Late Sh. Sardar Singh and Smt. Dhan Kaur i.e. mother of defendants? (OPD) v Relief.

Plaintiffs' Evidence

8. The plaintiff examined himself as PW-1, who in his affidavit in evidence Ex. PW-1/A has stated and reiterated on oath the contents of the plaint.

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Defendants' Evidence

9. Devi Singh, s/o Sh Sardar Singh examined himself as DW-1, who in his affidavit in evidence Ex. DW1/A has stated and reiterated on oath the contents of his affidavit. He has relied upon the following documents:

a. Ex. DW-1/1 (OSR) is school leaving certificate.

b. Ex. DW-1/2 (OSR) is Election Card.

- c. Ex. DW-1/3 (OSR)(colly) are receipt no. 25 and 144 of tehsildar office.
- d. Ex. DW-1/4 (colly) are the English translations of receipt no. 25 and 144.

Defendant no. 1 closed his evidence on 22.03.2021.

10. Sh Deepak s/o Late Sh Dharampal (LR of defendant no. 2 Sh Dharampal) examined seven witnesses in his evidence:

a. Sh Deepak s/o Sh Dharampal examined himself as D2W1, who in his affidavit in evidence Ex. D2W1/A has stated and reiterated on oath the contents of his affidavit. He has relied upon the following documents:

i. Photocopy of Aadhaar card of Smt.Dhan Kaur is Mark A. (the said document is mentioned as Ex.D2-6W-1/1 and later de-exhibited). ii. Photocopy of Election ID card of Smt.Dhan Kaur is Mark B. (the said document is mentioned as Ex.D2-6W-1/2 and later de-exhibited) iii. Photocopy of Aadhar card of Sh.Dharampal is Mark C. (the said document is mentioned as Ex.D2-6W-1/3 and and later de-exhibited) CS No. 426032/16 Page no. 7 of 18 iv. Photocopy of Ration card of Sh.Sardar Singh is Mark D. (the said document is mentioned as Ex.D2-6W-1/4 and and later de-exhibited) v. Photocopy of School leaving certificate of Sh.Dharampal is Mark E. (the said document is mentioned as Ex.D2-6W-1/5 and later de- exhibited) vi. Photocopy of Driving license of Sh.Dharampal is Mark F. (the said document is mentioned as Ex.D2-6W-1/6 and later de-exhibited). vii. Photocopy of allotment certificate and lease money receipt of allotment of agricultural land in the name of Sh.Dharampal is Mark G (colly). (the said document is mentioned as Ex.D2-6W-1/7 (colly) and later de-exhibited).

viii. Photocopy of Caste certificate of Sh.Dharampal is Mark H. (the said document is mentioned as Ex.D2-6W-1/8 and later de-exhibited). ix Photocopy of Character certificate of Sh.Dharampal issued by Principal Govt. Co-Ed., Sr.Sec. School, Ghuman Hera, Delhi is Mark I. (the said document is mentioned as Ex.D2-6W-1/9 and later de-exhibited).

b. Ms. Ishmeet Kaur, Assistant Section Officer from UIDAI was examined as D2W2. She was a summoned witness and she had brought have brought the letter dated 25.04.2023 issued by Deputy Director (Legal), RO, Delhi which is Ex.D2W2/1.

c. Sh Shyam Lal Meena, Admission Incharge from Govt. Boys Senior Secondary School was examined as D2W3. He was a summoned witness and he had brought admission and School Leaving Certificate of Sh. Dharampal, s/o Sh.Sardar Singh, r/o village Ghuman Hera bearing CS No. 426032/16 Page no. 8 of 18 admission No.1251/796. He stated that no record of Sh. Dharampal, s/o Sh. Sardar Singh pertaining admission no.1251/796 existed in the school record and the said report alongwith copy of Admission Withdrawal register is Ex.D2W3/1 (colly).

d. Sh Nitin Sharma, Patwari from SDM Office was examined as D2W4. He was a summoned witness and he had brought the record of caste certificate issued in the name of Sh. Dharampal, s/o Sardar Singh vide application bearing no.9630040704 by the Revenue Department which is Ex.D2W4/1.

e. Sh Ombir Singh, Panchayat Secretary, BDO Office was examined as D2W5. He was a summoned witness and he had brought the record i.e. the original record of L.R.37 bearing serial no.88 dated 23.12.1985 in the name of Sh.Dharampal, s/o Sardare, r/o village Ghuman Hera, New Delhi which is Ex.D2W5/1.

f. Ms. Meenu Mehan, ASO, AC-34(Matiala) was examined as D2W6. She was a summoned witness and she had brought the letters issued by AERO the office of the Electoral Registration Officer, AC-34, Matiala, dated 02.05.2023 and the office of the electoral Registration Officer, AC-37 (Palam), Sector-1, Dwarka, dated 27.04.2023 which is Ex.D2W6/1.

g. Sh Pankaj Joshi, Data Entry Operator, Tehsil Kapashera was examined as D2W7. He was a summoned witness and he had brought the original file of appeal No.135/14 titled as Azad Singh Vs. Devi Singh & Ors containing the record of mutation file bearing no.M-71/CO/TKH/2012-

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13 which is Ex.D2W7/1 (colly).

11. Defendant no. 4 Smt. Roop Kaur was examined as D4W1 who in her affidavit in evidence Ex. D4W1/A has stated and reiterated on oath the contents of her affidavit.

12. Defendant no. 6 Smt Bala was examined as D6W1 who in her affidavit in evidence Ex. D6W1/A has stated and reiterated on oath the contents of her affidavit.

13. Ld counsel for defendant no. 3, 4 and 6 closed defendant evidence on behalf of defendant no. 3, 4 and 6 on 20.02.2024 and the matter was listed for final arguments.

14. Final arguments have been heard. I have gone through the judicial record.

15. Now I shall give my issue-wise findings on the following issues:

i Whether the suit of the plaintiff is barred by limitation? (OPD) ii Whether the suit of the plaintiff is bad for non joinder of necessary parties more specifically Smt. Dhan Kaur i.e. mother of the defendants? (OPD) iii Whether a factum of marriage (void/voidable) is essential for the purposes of applicability of Section 16 of Hindu Marriage Act, 1955? (OPP) iv Whether a Karava marriage took place between Late Sh. Sardar Singh and Smt. Dhan Kaur i.e. mother of defendants? (OPD) CS No. 426032/16 Page no. 10 of 18

(a) Issue no. (i) i Whether the suit of the plaintiff is barred by limitation? (OPD) The onus to prove issue no. (i) was upon defendants and in order to discharge their onus the defendants got examined 10 witnesses in total. The plaintiff got examined himself as PW-1. The admitted case of plaintiff is that Sh Attar Singh, Sh Sardar Singh and Sh Raghubir are the descendants of Late Sh Gyani Singh who got expired in 1935. The plaintiff is claiming to declare the defendants as illegitimate child of Late Sh Sardar Singh and as per prayer clause the plaintiff want to get the defendants declared as illegitimate child of Late Sh Sardar Singh and further declare mutation order dated 22.06.2013 passed by Tehsildar, Kapashera in case Misal no.

M-71/CO/TKH/2012-13 as null and void i.e. to get the declaration regarding mutation order dated 22.06.2013 as null and void. The mutation order is one of consequences of co-parcenary rights of the defendants which they attain by birth. By getting declared the defendants as illegitimate children the plaintiff, directly or indirectly want to get benefit arising out of co-parcenary rights. It is admitted case of plaintiff that the entire land of 31 bigha and 6 biswa belong to Late Sh Gyani Singh who got expired in 1935 and out of that land, 3 sons of Late Sh Gyani Singh i.e. Attar Singh, Sardar Singh and Raghubir Singh inherited the co-parcenary rights and the parties to suit has got their co-parcenary rights being the descendants of Attar Singh, Sardar Singh, Bhateri Devi and Dhankaur. It is also admitted case of the plaintiff that the date of birth of plaintiff Azad Singh is 06.10.1954 and defendant Devi Singh is elder to plaintiff Azad Singh. In order to challenge the co-parcenary right by way of challenging the legitimacy of defendant Devi Singh the plaintiff Azad Singh was CS No. 426032/16 Page no. 11 of 18 required to challenge the legitimacy of Devi Singh within the limitation period. As Devi Singh is elder to Azad Singh then plaintiff/Azad Singh born on 06.10.1954. From the very day of his birth plaintiff Azad Singh was entitled to challenge legitimacy of defendant Devi Singh through his ad-litum Guardian. Being minor plaintiff Azad Singh could not challenge the legitimacy of defendant Devi Singh by filing suit until the present plaintiff Azad Singh had attained the age of majority i.e. 18 years. Plaintiff Azad Singh attained the majority on 06.10.1972 and after 06.10.1972 plaintiff Azad Singh had option to sue against defendant Devi Singh for purpose of challenging the legitimacy of defendant Devi Singh. From 06.10.1972 the limitation period for filing the suit for declaration reckoned which got vanished on 07.10.1975 whereas the present suit was filed on 26.07.2014 i.e. delay of about 38 years and 9 months. It is also settled law in Indian Contract Act, 1872 that the minor do not have capacity to contract and in case, the minor bound by some pre-existing term then he gets the option to sue for his grievance after attaining the age of majority i.e 18 years of age. Similar is the situation in the Family Law where there is option to sue on attaining the puberty. For purpose of condonation of delay it is settled law that Section 5 of Limitation Act do not apply to suits. The fact by one party need not to be proved by opposite party. The defendant has successfully brought on record that there is delay of about 38 years and 9 months for the plaintiff for getting the declaration against the legitimacy of defendant for purpose of having benefit of co-parcenary rights in the property inherited from his grandfather Sh Gyani Singh who got expired in 1935. Accordingly, the issue no. (i) is decided in favour of defendants and against the plaintiff.

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(b) Issue no. (ii)

ii Whether the suit of the plaintiff is bad for non joinder of necessary parties more specifically Smt. Dhan Kaur i.e. mother of the defendants? (OPD) The onus to prove issue no. (ii) was upon defendants and in order to discharge their onus the defendants got examined 10 witnesses in total. The plaintiff got examined himself as PW-1. In the written statement filed by the defendants, defendants have taken specific defence of non joinder of necessary parties i.e. Smt. Dhan Kaur and Late Sh Sardar Singh on the date of filing of suit. Dhan Kaur was alive at the time of filing of WS and Sh Sardar Singh got expired on 24.09.2012. WS was filed in the court on 04.09.2014 and got drafted on 02.09.2014 but plaintiff not took any steps to implead Dhan Kaur as one of the party to suit to whom he do not claim or accepts to be his mother but averred that defendants are offspring of Dhan Kaur. The plaintiff deliberately left Smt Dhan Kaur, mother of defendants, from the array of parties in the suit and it was only Dhan Kaur who could have uttered anything about the birth of defendants being their mother. So Smt. Dhan Kaur was the necessary party to suit. During course of evidence PW-1 admitted that whole family including Dhan Kaur used to stay in one house. PW-1 also positively affirmed the suggestion that his mother Bhateri Devi not filed any case against late Sh Sardar Singh and Smt. Dhan Kaur. PW-1 has positively affirmed the suggestion that plaintiff and defendants are biological sons and daughters of Sh Sardar Singh. PW-1 also admitted that he has not impleaded Dhan Kaur as party to the suit but despite above and specific objection by defendants, the plaintiff has not impleaded Dhan Kaur as party to suit without whom the sought relief of declaration CS No. 426032/16 Page no. 13 of 18 pertaining to prayers of plaintiff cannot be decided. Hence, the present suit is bad for non joinder of necessary parties more specifically Smt Dhankaur i.e mother of defendants. The defendants have successfully discharged their onus to prove issue no. (ii). Accordingly, issue no. (ii) is decided in favour of defendants and against plaintiff.

(c) Issue no. (iii) iii Whether a factum of marriage (void/voidable) is essential for the purposes of applicability of Section 16 of Hindu Marriage Act, 1955 ? (OPP) The onus to prove issue no. (iii) was upon plaintiff. The plaintiff got examined himself as PW-1. The contention raised by issue no. (iii) is the legal contention. During course of arguments the plaintiff has relied upon the judgment titled as Revanasiddappa and Anr. Vs Mallikarjun and Ors. Civil Appeal no. 2844 of 2011 passed by Hon'ble Supreme court of India on 01.09.2023. The Court is forfeited with the above judgment wherein it is held that whether the marriage is void or voidable the children out of that wedlock are always legitimate and have the co-parcenary rights to the extent of the property inherited to their father but not above that line of that of father. The children out of void or voidable marriage cannot claim the co-parcenary right in the property of other members of family except their father so the law relating to Section 16 of HMA, 1955 has been extensively dealt with in above judgment by Hon'ble Supreme Court of India and accordingly, the issue no. (iii) is decided in favour of plaintiff.

(d) Issue no. (iv)

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(iv) Whether a Karava marriage took place between Late Sh. Sardar Singh and Smt. Dhan Kaur i.e. mother of defendants? (OPD) The onus to prove issue no. (iv) was upon defendants and in order to discharge their onus the defendants got examined 10 witnesses in total. The plaintiff relied upon judgment Revanasiddappa and Anr. Vs Mallikarjun and Ors. Civil Appeal no. 2844 of 2011 passed

by Hon'ble Supreme court of India on 01.09.2023 wherein Hon'ble Supreme Court of India has clarified the law annunciated u/s 16 of HMA, regarding legitimacy of children who begotten from void or voidable marriage and the extent of co- parcenary rights of the children arising out of such marriage. The law relating to Hindu Succession Act has also been extensively dealt with alongwith provisions of HMA, 1955 but the above judgment is no where concerned with the case of plaintiff who disputes the kareva marriage in the year 1946. It is settled that HMA do not have retrospective effect and giving due weightage of custom and usage of communities it do not interfered in the customary relations established before passing of the Act. The plaintiff got examined himself as PW-1 and proved his affidavit as Ex. PW-1/A and deposed that after death of Attar Singh, widow Smt. Dhan Kaur extended illicit relations between Sardar Singh during the life time of his wife Smt Bhateri and begotten four daughters and two sons. PW-1 further deposed that 6 children born from the illicit relations of deceased Sardar Singh and Smt. Dhan Kaur who have no right, title or interest whatsoever in the ancestral properties acquired by deceased Sardar Singh but on humanitarian grounds PW-1 became ready to divide the 1/3 undivided share of his father into two equal parts i.e half share for himself and half share to Sh Devi Singh and Sh Dharampal. PW-1 further deposed CS No. 426032/16 Page no. 15 of 18 that he had signed the affidavit and application for mutation and also appeared before Tehsildar for mutation. PW-1 further mentioned that after mutation of their names in the revenue records the defendants changed their colours and became adamant to the land mutated in their names and refused to give half share to PW-1 which shows that without any consideration and considering the relationship between Sardar Singh and Dhan Kaur the plaintiff agreed to give share in immovable properties to defendants from the ancestral property i.e 1/3rd share in the name of Sh Sardar Singh which he received from the legacy of Sh Gyani Singh. During course of cross examination PW-1 affirmed the suggestion that Devi Singh i.e. defendant no. 1 is his elder brother. PW-1 further stated that he as well as defendant no. 1 used to call Sardar Singh as Babu, Kaka (father). PW-1 also admitted that the last rites and sacred fire to Sardar Singh was given by defendant Devi Singh. PW-1 also affirmed the suggestion that no threat was given by late Sardar Singh and Smt. Dhan Kaur to him during his life time and his mother Bhateri Devi never made any complaint against Late Sardar Singh and Smt. Dhan Kaur regarding any threat. PW-1 further admitted that in his childhood the whole family used to stay in one home including his mother Bhateri Devi, defendants, Smt. Dhankaur and Late Sh Sardar Singh. PW-1 further admitted that he was having no pressure of any time at the time of signing of affidavit and application for mutation of agricultural land. PW-1 also affirmed that his mother Bhateri Devi not filed any case against Sh Sardar Singh and Smt Dhan Kaur. PW-1 specifically stated that he has no personal knowledge about the Kareva marriage but his mother used to tell that no Kareva marriage took place. PW-1 accepted that there is a custom of 'palla udhana' in their village/community. PW-1 specifically admitted that the plaintiffs and defendants are the biological sons and CS No. 426032/16 Page no. 16 of 18 daughter of Sh Sardar Singh and they belong to Jat community where there is custom in their village namely 'Palla udhana' or 'chadar udhana'. During course of evidence the PW-1 has himself admitted that the plaintiff and defendants are the biological children of Late Sh Sardar Singh which gives weightage to the fact of co-habitation of Sardar Singh and Dhan Kaur. As per admitted facts from both sides Attar Singh had expired in 1935 and Bhateri Devi got expired on 27.01.1984. Sardar Singh got expired on 24.09.2012 whereas suit was filed on 18.09.2014. One of the the party to kareva marriage i.e. Sardar Singh got expired before filing of suit and another party to Kareva marriage i.e Dhan Kaur was not impleaded as party to suit despite specific objection by defendant so without

impleading necessary living party to the suit nothing can be said against the kareva marriage wherein Dhan Kaur was the party to marriage and alive during pendency of suit. PW-1 has specifically admitted the fact that plaintiff and defendants are biological children of Sardar Singh. It is admitted fact that entire family including Sardar Singh, Dhan Kaur and 6 children of Dhan Kaur from Sardar Singh were living in the same house without any complaint or case by Bhateri Devi against Sardar Singh and Dhan Kaur. It established that Sardar Singh and Dhan Kaur were residing as husband and wife in the same house with intention to carry forward the social family life as husband & wife and begotten 6 children apart from the plaintiff. So it is clear that Late Sh Sardar Singh and Dhan Kaur were residing as husband and wife in the same house alongwith plaintiff and defendants so as to establish the factum of kareva marriage. In view of deposition by PW-1, the issue no. (iv) is decided in favour of defendants and against the plaintiff.

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16. Relief

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In view of my aforesaid findings, the suit of the plaintiff is dismissed.

Decree sheet be prepared.

File be consigned to the record room after due compliance.

Ajay Digitally signed by Ajay Kumar Malik Kumar Date:

Announced in the Open Court on 07.03.2024 Malik 2024.03.07 17:36:49 +0530
(Ajay Kumar Malik) ASCJ cum JSCC cum Guardian Judge Dwarka Courts: New Delhi
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